

(Format of authorization letter issued by Original Equipment Manufacturer (OEM) on the letter head of the manufacturer in the name of bidder.)

To,

The Registrar,
Indian Institute of Technology (ISM)
Dhanbad - 826004.

Subject: Authorization letter for supply of Potable Water Purification System with Inbuilt Water Cooler in favour of

M/s. _____

Reference: GeM Bid No. _____

We M/s. _____ (name of manufacture) hereby authorize to
M/s. _____ (name and address of
dealer/distributor) for participating in subject bid on GeM. We hereby confirm that the item supplied by the
said dealer/distributor will be authentic material manufactured by us and will meet the quality as per tender
specifications. We hereby also confirm that we will extend our full support for the timely delivery of the
material by the said dealer/distributor and above and warranty for the same.

Signature and stamp of authorized signatory of OEM _____

Name: _____

Email ID: _____

Mobile/Phone No.: _____

Designation (if available)

(To be submitted on letter head of Original Equipment Manufacturer)

Undertaking of Warranty.

It is certified that all the products supplied by us against the GeM Bid No. _____ dated _____ will have an unconditional onsite warranty of (1+4) years from the date of installation. Defects if any will be rectified including replacement of spares parts/entire goods at the site of IIT(ISM), Dhanbad.

It is also certified that all the complaints related to Potable Water Purification System with Inbuilt Water Cooler supplied by us will be resolved within 2 working days from receipt of complaint.

**(Signature, date and seal of concern official of Original
Equipment Manufacturer)**

PRE-BID QUERY FORM

Tender/Bid Reference No.: _____

Name of Tender / Bid: - _____

Sr. No.	Reference of the Clause No. of the tender/Bid Document (page number)	Query/Clarification/ Deviation sought	Clarification/ Response from IIT(ISM)
1			
2			
3			
4			
5			
6			
7			
8			
9			
10			

Declaration by bidder**(Please specify Class of Supplier and Local Content percentage)**

**In accordance and manner as specified in Order No. P45021/2/2017-PP (BE-II) dated :
04th June 2020 issued by DIPP, Ministry of Commerce and Industries, Gol.**

To,

The Registrar,

Indian Institute of Technology (Indian School of Mines)

Dhanbad -826004

Respected Sir,

In accordance with the order No. P-45021/2/2017-PP (BE-II) dated 04th June, 2020, I hereby declare that

- i) I am aware about all provision mentioned in GeM Bid No.....as well as order No. P-45021/2/2017-PP (BE-II) dated 04th June, 2020 and abides by the same.
 - ii) I declare that for this tender, I am a **Class-I local supplier / Class-II local supplier / Non-local supplier** (Strike out whichever is not applicable) and classification is based on local content of goods/services/work offered by bidder in this tender.
 - iii) **Local content (in percentage) in offered** good/services/work is: _____%
- Whereas ‘Local Content’** means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.
- iv) The local content for all inputs which constitute the said goods/services/works has been verified and bidder is responsible for the correctness of the claims made therein.
 - v) Details of items, amount and location(s) at which the local value addition is made:

Sl. No.	ITEM (S)	AMOUNT	LOCATION(S)
1.			
2.			
3.			
4.			
5.			
6.			
7.			

Date:

Signature:

Name of Authorized Signatory:

Name of Bidder:

Seal of Bidder:

SELF-CERTIFIED DECLARATIONS FOR TAKING PART IN TENDER

a. Regarding blacklisting / debarring

b. Insolvency

1. I / We _____ (Tenderer) hereby declare that the firm / agency / Company, namely M/s _____ has not been declared as **insolvent**.

AND

2. I / We _____ (Tenderer) hereby declare that the firm / agency / Company, namely M/s _____ has not been **blacklisted or debarred** in the past by Union / State Government or Organization from taking part in Government tenders in India.

OR

2. I / We _____ (Tenderer) hereby declare that the Firm/Agency/Company, namely M/s _____ was **blacklisted or debarred** by Union/ State Government or any Organization from taking part in Government tenders for a period of _____ years w.e.f. _____ to _____. The period is expired and now the Firm/Agency/Company is entitled to take part in Government tenders.

In case the above information is found to be false I / We are fully aware that the tender/contract will be rejected / cancelled by Director, IIT(ISM) Dhanbad, and EMD shall be forfeited.

In addition to the above the Director, IIT(ISM) Dhanbad will not be responsible to pay the bills for any completed/partially completed work.

Date:

Place:

Self Certification: _____

Name: _____

Address: _____

Stamp:

UNDERTAKING

(To be signed and submitted/uploaded along with Technical bid documents on Company's Letter Head)

(As per Office Memorandum No. F.7/10/2021-PPD(1) dated: 23.02.2023 issued by Department of Expenditure (Ministry of Finance), Govt. of India)

Model certificate for Tenders

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached]"

Place:

Signature:_____

Date:

Name:_____

Stamp:_____

OR

Model certificate for tenders for work involving possibility of sub-contracting

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contracting from such countries I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub contract any work to a contract form such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Provide Compliance for the above in Vendor Specified Commercial Terms.]"

Place:

Signature:_____

Date:

Name:_____

Stamp:_____

Technical Evaluation Checklist/ Compliance Sheet to be submitted by the bidder
(Mandatory for Bidders to fill this Compliance Sheet along with supporting documents/certificate)

Name of the Firm:-

SL No	Specification	Particulars/ Measurement	Status of Compliance, please provide the exact value wherever applied. Option can also be provided in (Yes/ No) in applicable cases.	Specification/ Details mentioned at Page No.
Part-A(Technical Compliance)				
A	Technical Specification			
1	Conformity to Standard for Ultraviolet system	IS 14724 (latest) for water purification system with Ultraviolet disinfection		
2	Type of water purification technology	RO + UV + {Copper (Cartridge) or Copper Zinc or Electrolytic Sanitizing System}		
3	Power consumptions of system (with $\pm 5\%$ tolerance) (in watt)	775 or lesser		
4	Operation mode	Fully automatic with auto cut off		
5	Ultraviolet (UV) LAMP	Yes		
6	Provision of Arsenic removal	Yes		
7	Provision of Fluoride removal	Yes		
8	Provision of Chloride removal	Yes		
9	Material of water Storage Tank	Stainless Steel SS 304		
10	Storage tank capacity up to float valve level (in liter)	120 or higher		
11	RO Membrane rating	75 GPD or higher		
12	RO Membrane flushing	Auto flush at every start, every stop and every one hour		
13	Particulate Filter size	10 inch		
14	Particulate Filter Porosity	≤ 5 micron		
15	Antiscalant- where silica is up to 10 ppm/where Mica is up to 100 ppm	Yes		
16	Minimum inlet pressure	0.3 KG/cm ² or Higher		
17	Filtration water capacity	Minimum 50 liters/ hour		
18	TDS removal percentage from RO Membrane	Minimum 90% or Higher		
19	Pressure vessel Sand Filter	Yes		
20	Pressure vessel Carbon Filter	Yes		
21	Number of candles	6 or more		
22	Type of compressor	Reciprocating		
23	Refrigerant Used	HFC-R-134/A or Any ECO friendly Gas		
24	Number of Cold Water Faucets	2		
25	Number of Normal Water Faucets	1		
26	Water Cooling capacity at comfort level (17°C $\pm$ 1 degree Celsius)	60 liter per hour or Higher		
27	Installation Type	Floor Mounted		
28	Power supply	SINGLE PHASE (230 $\pm$ 10 % VOLT,%0 Hz)		

Technical Evaluation Checklist/ Compliance Sheet to be submitted by the bidder
(Mandatory for Bidders to fill this Compliance Sheet along with supporting documents/certificate)

Name of the Firm:-

SL No	Specification	Particulars/ Measurement	Status of Compliance, please provide the exact value wherever applied. Option can also be provided in (Yes/ No) in applicable cases.	Specification/ Details mentioned at Page No.
29	Warranty in years including electronic ,electric parts, replacement of filters twice a year)	(1+4) Years.Cartridges and filters shall be replaced regularly, they shouldn't be used more than 6 Months along with other regular maintenance. The Comprehensive Annual Maintenance contract (CAMC) which will be for the next five years after the successful installation of the product. This should cover the cost and replacement and maintenance of all consumable and non-consumable materials such as filters, cartridges, membranes, sensors, switches, compressors, motor, gas, UV lamps etc. including all electronic components and consumable for the water purifier. The water test report from NABL certified labs to be submitted as per requirement. The Cartridges and filters shall be replaced regularly on requirement basis along with other regular maintenance. Further, the Cartridges and filters shouldn't be used more than 6 months.		
30	Test Report of the output water from NABL Accredited Laboratory for each machine needs to submit.	Yes at the time of Installation and commissioning.		
31	Type test certificate of the offered product from NABL/ILAC Lab design evaluation report as per IS 14724	Yes for the offered product (to be submitted at the time of bid)		
32	Availability of toll free centers for customer support	Yes		
33	Installation and Commissioning inclusive in the scope of Supply	Yes		
34	Availability of NABL Accredited Laboratory Facility with OEM	Yes		
35	Inlet Pipe & Fitting from raw water sources to water purification system	To be arranged by buyer / consignee		
36	Pipe & Fitting from Out let to purified water tank	To be arranged by buyer /consignee		
37	Electrical fitting and plug points	To be arranged by buyer /consignee		
38	ISI marked Electronic and electrical parts provided	Yes		
39	Scope Civil Work if any required during installation	All Civil work shall be the responsibility of buyer		
B	Others			
30	Onsite warranty acceptance submitted in the prescribed Annexure-II	Minimum (1+4) years	Minimum Years Of Warranty Offered:years	
31	Acceptance of Additional Terms and conditions	(Yes/No)		
32	Consent for submitting the sample of parts to be used in the Water cooler and sample display (after the award of the contract) as per ATC clause.	(Yes/No)		

Technical Evaluation Checklist/ Compliance Sheet to be submitted by the bidder
(Mandatory for Bidders to fill this Compliance Sheet along with supporting documents/certificate)

Name of the Firm:-

SL No	Specification	Particulars/ Measurement	Status of Compliance, please provide the exact value wherever applied. Option can also be provided in (Yes/ No) in applicable cases.	Specification/ Details mentioned at Page No.
Part-B(Commercial Compliance)				
1	Status of Bidder(OEM or Authorized dealer/distributor) The Authorized dealer/distributor are required to submit a certificate in Annexure-I issued by Original Equipment Manufacturer (OEM) for their authorization to participate in the bid .	OEM or Authorized dealer/distributor of(indicate OEM name)		
2	Address of the OEM manufacturing set-up/unit in India	Address details		
3	(a) GST registration number of bidder (Copy to be attached)	(Yes/No)		
	(b) PAN number of bidder (Copy to be attached)	(Yes/No)		
	(c)Factory License of OEM (Copy to be attached)	(Yes/No)		
4	Bidder is required to submit the EMD as per the bid terms and conditions.	(Yes/No) The details of the same should be attached		
5	<u>Average annual Turnover Criteria:</u> Average Annual turnover in preceding three financial year (i.e, FY 2021-22, 2022-23 and 2023-24) should be as per the bid document. (Authorized dealer/OEM has to submit the supporting documents with the bid)	Minimum 1050 Lakhs Rs (Indicate the average turnover value of preceeding three financial years)	Turnover Details for OEM 1) In FY 2021-22=Rs..... 2) In FY 2022-23=Rs..... 3) In FY 2023-24=Rs..... Average Annual Turnover of last three FY = Rs.....	
		Minimum 130 Lakhs Rs (Indicate the average turnover value of preceeding three financial years)	Turnover Details for Bidder 1) In FY 2021-22=Rs..... 2) In FY 2022-23=Rs..... 3) In FY 2023-24=Rs..... Average Annual Turnover of last three FY = Rs.....	
	<u>Experience Criteria:</u>			
	1. The bidder/OEM shall provide a single work order along with work completion certificate duly signed by the Competent Authority of the buyer of minimum 100 water cooler cum water purifier supplied to any Central/State Govt Organization / PSU / Govt Autonomous Bodies/CFTI's in any last 05 (Five) Financial Years (FY 2020-21, 2021-22, 2022-23, 2023-24, and 2024-25), ending 31st March, 2025.	(Yes/No) The details of the same should be attached		

Technical Evaluation Checklist/ Compliance Sheet to be submitted by the bidder
(Mandatory for Bidders to fill this Compliance Sheet along with supporting documents/certificate)

Name of the Firm:-

SL No	Specification	Particulars/ Measurement	Status of Compliance, please provide the exact value wherever applied. Option can also be provided in (Yes/ No) in applicable cases.	Specification/ Details mentioned at Page No.
6	2. Bidder/OEM should have experience of successfully completed the similar nature of work in any Central/State Govt Organization / PSU / Govt Autonomous Bodies/CFTI's during last 03 (Three) Financial years, ending 31st March 2025, i.e., (FY 2022-23, 2023-24, 2024-25) as follows: (a) One similar work each costing not less than the amount equal to 80% of the total tender cost. Or (b) Two similar work each costing not less than the amount equal to 50% of the total tender cost. Or (c) Three similar work each costing not less than the amount equal to 40% of the total tender cost. Similar nature of work means supply and installation of Work order along with work completion certificate duly signed by the Competent Authority of the buyer is to be attached with the bid. Note: Work order/ work completion certificate of earlier period will not be considered.	(Yes/No) The details of the same should be attached		
7	Have their own <u>Service Center or Authorized Dealer</u> within Jharkhand State and certificate to be attached. The details of such a service center should be submitted along with supporting documents such as shop registration certificate, electricity bill, etc. indicating the address of Service Center or Authorized Dealer within Jharkhand State.	(Yes/No) The details of the same should be attached		
8	<u>Escalation matrix</u> for service support: Bidder/OEM must provide escalation matrix for Service Support.	(Yes/No) The details of the same should be attached		
9	<u>ISO certifications should be from approved accredited certifier agency (Following certificates to be submitted)</u>	(Yes/No) The details of the same should be attached		
	a) ISO 9001 :2015 or latest version Quality Management Systems	(Yes/No) The details of the same should be attached		
	b) ISO 14001:2015 or latest version Environmental Management System	(Yes/No) The details of the same should be attached		
	c) ISO 45001:2018 or latest version Occupation Health and Safety management System.	(Yes/No) The details of the same should be attached		
10	Compliance with ISO 10500:2012 or latest version for Drinking water quality of offered model from NABL approved lab. The certificate copy of the same need to be enclosed by the bidder. Issuing Accredited authority/bodies of the above certificates shall be verifiable through the website: https://nablwp.qci.org.in/ . Certificates obtained from any other non-approved agency will not be acceptable.	(Yes/No) The details of the same should be attached		

Technical Evaluation Checklist/ Compliance Sheet to be submitted by the bidder
(Mandatory for Bidders to fill this Compliance Sheet along with supporting documents/certificate)

Name of the Firm:-

SL No	Specification	Particulars/ Measurement	Status of Compliance, please provide the exact value wherever applied. Option can also be provided in (Yes/ No) in applicable cases.	Specification/ Details mentioned at Page No.
11	<u>In House Lab facilities:</u> The OEM of the offered product should have in-house NABL accredited testing facilities. The certificate issued from NABL mentioning the name of the Legal Identity, Certificate Number, Address of the testing facilities etc. should be attached with the bid document.	(Yes/No) The details of the same should be attached		
12	<u>Scope of supply (Bid price to include all cost components) :</u> Price should include supply, installation, testing at IIT(ISM) Dhanbad and shall include the GST, transportation, insurance, packing, or any other charges/taxes if any.	(Yes/No)		
13	<u>OPTION CLAUSE</u> The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.	(Yes/No)		
14	Declaration by the bidder for Class of Supplier and Local content percentage in the prescribed format as per bid terms and condition.	(Yes/No) Declaration as per prescribed format Annexure-IV to be attached		
15	Self-Certified Declaration for taking part in tender for blacklisting/debarring and insolvency in the prescribed format as per bid terms and condition.	(Yes/No) Declaration as per prescribed format Annexure-V to be attached		
16	Undertaking related to Model certificate for Tenders to be submitted in the prescribed format as per bid terms and condition.	(Yes/No) Declaration as per prescribed format Annexure-VI to be attached		
17	Submit the signed & stamped documents of entire bid document for your acceptance.	(Yes/No)		
18	Compliance with Integrity Pact	(Yes/No) Declaration as per prescribed format Annexure-VIII to be attached		

INTEGRITY PACT

(To be executed on a non-judicial Stamp Paper of Rs.100 and applicable for all tenders of threshold value above Rs. 1 Crore)

This **INTEGRITY PACT** is made and executed at on day of 2024.

BY AND BETWEEN

The Indian Institute of Technology (Indian School of Mines) Dhanbad represented through having its office located at Dhanbad, Jharkhand – 826004 (hereinafter referred to as "The Principal" which terms or expression shall, unless excluded by or repugnant to the subject or context, mean and include its successor-in-office, administrators or permitted assignees) of the **First Part;**

AND

M/s.....a company incorporated under the Companies act,..... through its representative /authorized signatory (Insert name and designation of the officer) vide resolution dated..... passed by the board of directors, having its office at (hereinafter referred to as "The Bidder/Contractor" which terms or expression shall, unless excluded by or repugnant to the subject or context, mean and include its successor-in-office, administrators or permitted assignees) of the **Second Part;**

Preamble

The Principal intends to award, under laid down organisational procedures, contract/s for (Name of the work/ goods/services). The Principal values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/transparency in its relations with its Bidder(s) and/or Contractor(s).

In order to achieve these goals, the Principal will appoint Independent External Monitors (IEMs), who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1 - Commitments of the Principal:

- (1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles:
 - a) No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.
 - b) The Principal will during the tender process treat all Bidder(s) with equity and reason. The Principal will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.
 - c) The Principal will exclude from the process all known prejudiced persons.
- (2) If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or if there be a substantive suspicion in this regard, the Principal will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2 - Commitments of the Bidder(s)/Contractor(s):

- (1) The Bidder(s)/Contractor(s) commit themselves to take all measures necessary to prevent corruption. The Bidder(s)/Contractor(s) commits themselves to observe the following principles during participation in the tender process and during the contract execution.
 - a) The Bidder(s)/Contractor(s) will not, directly or through any other persons or firm, offer, promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage or any kind whatsoever during the tender process or during the execution of the contract.
 - b) The Bidder(s)/Contractor(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.
 - c) The Bidder(s)/Contractor(s) will not commit any offence under the relevant IPC/PC Act; further the Bidder(s)/Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to other, any information or document provided by the Principal as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
 - d) The Bidder(s)/Contractor(s) of foreign origin shall disclose the name and address of the Agents/representatives in India, if any. Similarly, the Bidder(s)/Contractor(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines of Indian Agents of Foreign suppliers" shall be disclosed by the Bidders(s)/Contractor(s). Further, as mentioned in the Guidelines all payments made to the Indian Agent/representative have to be in Indian Rupees only. "Guidelines on Indian Agents of Foreign Suppliers"
 - e) The Bidder(s)/Contractor(s) will, when presenting their bid, disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
 - f) Bidder(s)/Contractor(s) who have signed the Integrity Pact shall not approach the courts while representing the matter to IEMs and shall wait for their decision in the matter.
- (2) The Bidder(s)/Contractor(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from tender process and exclusion from future contracts:

If the Bidder(s)/Contractor(s), before award or during execution has committed a transgression through a violation of Section 2, above or in any other form such as to put their reliability or credibility in question, the Principal is entitled to disqualify the Bidder(s)/Contractor(s) from the tender process or take action as per the procedure mentioned in the "Guidelines on Banning of business dealing".

Section 4 : Compensation for Damages

1. If the Principal has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, the Principal is entitled to demand and recover the damages equivalent to Earnest Money Deposit/Bid Security.
2. If the Principal has terminated the contract according to Section3, or if the Principal is entitled to terminate the contract according to Section3, the Principal shall be entitled to demand and recover from the Contractor liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Section 5 : Previous Transgression

1. The Bidder declares that no previous transgressions occurred in the last three years with any other company in any country conforming to the anti-corruption approach or with any public sector enterprise in India that could justify his exclusion from the tender process.
2. If the bidder makes incorrect statement on this subject, he can be disqualified from the tender process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealing".

Section 6: Equal treatment of all Bidders / Contractors / Sub-Contractors.

1. In case of sub-contracting, the Principal Contractor shall take the responsibility of adoption of Integrity Pact by the Sub-contractor.
2. The Principal will enter into agreements with the identical conditions as this one with all bidders and Contractors.
3. The Principal will disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7: Criminal charges against violating Bidder(s) / Contractor(s) / Sub-contractors(s)

If the Principal obtains knowledge of the conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor Subcontractor which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal will inform the same to the Chief Vigilance Officer.

Section 8 : Independent External Monitor

1. The Principal appoints competent and credible Independent External Monitor for this Pact after approval by Central Vigilance Commission. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.
2. The Monitor is not subject to instructions by the representatives of the parties and performs his/her functions neutrally and independently. The Monitor would have access to all contract documents, whenever required. It will be obligatory for him/her to treat the information and documents of bidders /contractors as confidential. He/she reports to the Director, IIT(ISM) Dhanbad.
3. The Bidder(s)/Contractor(s) accepts that the Monitor has the right to access without restriction to all project documentation of the Principal including that provided by the Contractor. The Contractor will also grant the Monitor, upon his/her request and demonstration of a valid interest, unrestricted and unconditional access to their project documentation. The same is applicable to Subcontractors.

4. The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s)/Subcontractor(s) with confidentiality. The Monitor has also signed declarations on "Non – Disclosure of Confidential Information" and of "Absence of Conflict of Interest" In case of any conflict of interest arising at a later date, the IEM shall inform the Director, IIT(ISM) Dhanbad.
5. The Principal will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Principal and the Contractor. The parties offer to the Monitor the option to participate in such meetings.
6. As soon as the Monitor notices, or believes to notice, a violation of this agreement, he/she will so inform the Management of the Principal and request the Management to discontinue or take corrective action, or to take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
7. The Monitor will submit a written report to the Director, IIT(ISM) Dhanbad within 8 to 10 weeks from the date of reference or intimation to him by the Principal and, should the Page 5 of 7 occasion arise, submit proposals for correcting problematic situations.
8. If the Monitor has reported to the Director, IIT(ISM) Dhanbad, a substantiated suspicion of an offence under relevant IPC/PC Act, and the Director, IIT(ISM) Dhanbad has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
9. The word "Monitor" would include both singular and plural.

Section 9: Pact Duration

This pact begins when both parties have legally signed it. It expires for the Contractor 12 months after the last payment under the contract, and for all other Bidders 6 months after the contract has been awarded. Any violation of the same would entail disqualification of the bidders and exclusion from future business dealings.

If any claim is made/lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged/determined by the Director, IIT(ISM) Dhanbad.

Section 10 - Other provisions:

1. This agreement is subject to Indian Law, Place of performance and jurisdiction is the Office of the Director, IIT(ISM) Dhanbad.
2. Changes and supplements as well as termination notices need to be made in writing. Side agreements have not been made.
3. If the Contractor is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
4. Should one or several provisions of this Pact turn out to be invalid, the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.